

**JUDGMENT SHEET
IN THE PESHAWAR HIGH COURT,
PESHAWAR**
(Judicial Department)

W.P No.5613-P/2024

Mohammad Rasool S/O Isa Khan, Ex. Assistant Master (BPS-17), University public School, Peshawar University.

Versus

Chairman Selection Board through Vice Chancellor, University of Peshawar & Others.

Date of hearing: **19.05.2026.**

For petitioner(s): Mr. Farman Ullah Khattak, Advocate.

For respondent(s): Mr. Jehanzeb Khan Muhammadzai, Advocate for Respondent-University &

Mr. Riaz Ali Khan, Deputy Registrar, University of Peshawar.

JUDGMENT

INAM ULLAH KHAN, J.-

1. The petitioner, Mohammad Rasool, has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution, seeking the following prayers:

It is, therefore, most humbly prayed that on acceptance of this petition, this Court may graciously be pleased to issue an appropriate Writ:

- (i) *By setting-aside Selection Board meeting held on 14th & 15th September, 2024, to the extent of not granting Proforma/Notional promotion as he has been retired since before meeting of the Selection board despite approval/clearance of the University Selection Committee and placement of Working Paper for Selection Board prior to the retirement as per University of Peshawar Teachers Statute.*

(ii) To grant notional promotion/Proforma promotion as the petitioner was already holding the post of Master(BPS-12) personal grade for almost 12 years and the delay cannot be attributed to the petitioner, beside, the meeting of the Selection Board was not convened due to ban imposed initially by the Election Commission of Pakistan and then by the Provincial Government.

(iii) Any other relief in the circumstances of the case may also be granted in the interest of justice. (These are prayers of the petitioners taken in his constitution petition)

2. Briefly stated, the facts necessary for disposal of the instant petition are that the petitioner was initially appointed as Trainee Graduate Teacher (BPS-16) on adhoc basis w.e.f. 07.11.1995 and was subsequently regularized on 27.09.1997. Thereafter, he was promoted / appointed as Assistant Teacher (BPS-17) on 07.11.2009. Subsequently, on 03.12.2012, the petitioner was granted Personal Grade in the post of Master (BPS-18) after rendering more than fifteen years satisfactory service, including ten years in BPS-17. It is the case of the petitioner that despite his eligibility and continuous service, applications for regular promotion to the post of Master (BPS-18) under the University Public School Teachers Statute, 2006, were invited after an inordinate delay of almost ten years through advertisement dated 25.05.2022. The petitioner applied within time and was duly scrutinized by the competent Scrutiny Committee, which found him eligible and fit for promotion. Thereafter, evaluation and quantification of marks were conducted through the competent Evaluation Committee and the result thereof was communicated vide letter dated 06.02.2023.

3. The record further reveals that the matter was processed and working papers for placing the case before the University Selection Board had also been prepared during the service tenure of the petitioner. However, the meeting of the Selection Board could not be convened due to restrictions/ban initially imposed by the Election Commission of Pakistan and subsequently by the

Provincial Government. The petitioner continued to serve the University and attained the age of superannuation on 03.04.2024. It is an admitted position that prior to retirement, the petitioner had already completed the requisite eligibility criteria, had undergone the scrutiny/evaluation process, and his case was ripe and mature for consideration before the Selection Board. However, due to administrative delays and circumstances beyond his control, the Selection Board meeting was ultimately convened on 14th & 25th September, 2024, after the retirement of the petitioner, whereupon his case was not entertained solely on the premise that he was no longer in service.

4. In response to legal intimation, the respondents entered appearance and contested the petition by filing their comments, wherein they strongly opposed the grant of the writ on both legal and factual grounds.

5. This Court heard learned counsel for the parties at considerable length and have gone through the available record with their able assistance.

6. Learned counsel for the petitioner argued that the petitioner cannot be deprived of his vested right of consideration for promotion merely because the respondents failed to convene the Selection Board meeting within time. It is contended that the delay was wholly attributable to the administration and external restrictions imposed by governmental authorities, and not to the petitioner. It has further been argued that the petitioner had already acquired eligibility during service and had successfully passed all stages of scrutiny and evaluation; therefore, denial of proforma/notional promotion is violative of law, equity and settled service jurisprudence.

7. Conversely, learned counsel for the respondents opposed the petition and submitted that the petitioner had already retired from service before the meeting of the Selection Board and, therefore, could not be considered for promotion. It was further contended that the petition is not maintainable due to non-availing of alternate remedy of appeal before the Chancellor under Section 40 of the Khyber

Pakhtunkhwa Universities Act, 2012. It was also argued that no vested right of promotion accrues to an employee and the petitioner has no locus standi after retirement.

8. The controversy involved in the instant matter is narrow yet significant, which is in the form that, whether an employee, who had admittedly attained eligibility for promotion during service and whose case had matured for consideration before the competent Selection Board, can be denied proforma/notional promotion merely because the Selection Board meeting was delayed due to administrative reasons and held after his retirement.

9. It is admitted position on the record that at the time when applications were invited for promotion to the post of Master (BPS-18), the petitioner was very much in active service. Not only had he applied within time, but his credentials and eligibility were duly examined by the Scrutiny Committee constituted under the relevant Statute. Thereafter, the Evaluation Committee quantified his marks and found him eligible and fit for promotion. The matter had progressed substantially and working papers for the Selection Board had also been prepared during the petitioner's service tenure. It is also not disputed that the meeting of the Selection Board could not be convened owing to circumstances beyond the control of the petitioner i.e., the ban/restrictions imposed first by the Election Commission of Pakistan and later by the Provincial Government. Thus, the delay in holding the meeting of the Selection Board was purely administrative in nature and wholly beyond the petitioner's control. The respondents have not pointed out any misconduct, disqualification, inefficiency or deficiency on the part of the petitioner disentitling him from consideration. The only impediment highlighted by the respondents is that the petitioner retired before the Selection Board meeting eventually took place. Such a stance, in the peculiar facts and circumstances of the present case, cannot be sustained in law.

10. It is now a well-settled principle of service jurisprudence that where an employee becomes eligible for promotion during service and his right for consideration matures, but due to administrative

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delay, oversight, or inaction of the department, the matter is not finalized before his retirement, such employee cannot be deprived of proforma/notional promotion if otherwise found fit and eligible. In this regard, Rule 17 of the Fundamental Rules assumes great significance. The proviso thereto empowers the competent authority to grant proforma promotion to an employee who, for no fault of his own, was wrongfully prevented from serving against the higher post to which he was otherwise entitled. The august Supreme Court of Pakistan in Askari Hasnain v. Secretary Establishment Division and others (2016 SCMR 871) also held that the competent authority is empowered under Rule 17 of the Fundamental Rules to grant proforma promotion even after retirement where the employee was otherwise entitled to promotion during service. Similarly, this Court in its judgment, rendered on 08.11.2017, in **W.P. No. 3801-P/2016**, titled Capt. Zahur Ahmad Khan v. Govt. of Pakistan & Others, also reaffirmed that under Fundamental Rule-17, an individual remains eligible for consideration of promotion even after retirement. The pertinent paragraph is reproduced below:

15. The petitioner though has retired from his service, but since his non-promotion has certainly effected his privileges and pension, therefore, in view of Fundamental Rules-17, he can be considered for promotion, even after retirement. Proviso to F.R. 17 is reproduced herein below:

"[Provided that the [appointing authority may, if satisfied that a civil servant who was entitled to be promoted from a particular date was, for no fault of his own, wrongfully prevented from rendering service to the Federation in the higher post, direct that such civil servant shall be paid the arrears of pay and allowances of such higher post through pro forma promotion or upgradation arising from the ante-dated fixation of his seniority.]

11. The controversy involved in the present case is also squarely covered by the judgment of the Hon'ble Supreme Court of Pakistan in Federation of Pakistan through Secretary, Ministry of National Health Services v. Jahanzeb and others (2022 SCMR 2020), wherein it was observed that if an individual is not duly considered for promotion due to an administrative

oversight, error, or delay at a time when the right to be considered for such promotion has matured, and consequently, the individual reaches the age of superannuation without receiving that consideration, the mechanism of proforma promotion may be invoked to provide relief in such circumstances. The relevant paragraph read as under:

6. If a person is not considered due to any administrative slip-up, error or delay when the right to be considered for promotion is matured and without such consideration, he reaches to the age of superannuation before the promotion, then obviously the avenue or pathway of proforma promotion comes into field for his rescue. [...].



In Jehanzeb case (supra), the Hon'ble Supreme Court also ruled that when a civil servant is wrongfully deprived of the opportunity to serve in a higher position to which he is entitled, through no fault of his own, the competent authority may grant proforma promotion or upgradation with antedated seniority, along with the payment of arrears of salary and allowances associated with the higher post. In the said judgment, the Honorable Apex Court further noted that undue delays in resolving proforma promotion cases result in significant hardship for civil servants and lead to unnecessary litigation. Consequently, it directed the competent authorities to establish and strictly adhere to timelines for designated promotion committees, ensuring that such matters are resolved and implemented promptly, without unjustified delays, thereby minimizing the need for court intervention to enforce legitimate service rights. The relevant directives are reproduced below:

6. [...]. We often noted that unjustified delay in proforma promotion cases trigger severe hardship and difficulty for the civil servants and also creates multiplicity of litigation. It would be in the fitness of things that the competent authority should fix a timeline with strict observance for the designated committees of proforma promotions in order to ensure rational decisions on the matters expeditiously with its swift implementation, rather than dragging or procrastinating all such issues inordinately or without any rhyme or reasons which ultimately compels the retired employees to knock the doors of Courts of law for their withheld legitimate rights which could otherwise be granted to them in

terms of applicable rules of service without protracted litigation or Court's intervention.

12. Likewise, in Ahmed Owais Peerzada, Chief Commissioner (Rtd.) Federal Land Commission, Islamabad v. Principal Secretary to the Prime Minister and others (2025 SCMR 819), the Hon'ble Apex Court dealt with a similar claim of proforma promotion by a retired civil servant. The petitioner's case for promotion to BS-22 could not be considered by the High Power Selection Board ("**HPSB**") before his retirement due to paucity of time. Upon approaching the Federal Service Tribunal ("**FST**"), directions were issued to place his case before the competent forum for consideration of proforma promotion with effect from the date of the relevant HPSB meeting, which judgment attained finality. Despite such directions, the matter was again deferred by the HPSB, and the FST failed to ensure implementation of its earlier judgment. The Hon'ble Supreme Court held that the FST is duty-bound to ensure effective execution and enforcement of its judgments and must take all necessary measures to secure compliance rather than divest itself of jurisdiction. Consequently, the Apex Court allowed the appeal and directed the HPSB to consider the petitioner's case for proforma promotion within two months.

13. In the present case, this Court finds that the petitioner had already crossed all procedural stages necessary for consideration before the Selection Board. The respondents themselves processed his case, scrutinized his credentials, quantified his evaluation, and prepared the working papers. Therefore, the respondents cannot now take advantage of their own administrative delay to defeat the legitimate rights of the petitioner.

14. The objection regarding maintainability on the ground of alternate remedy is also not sufficient to non-suit the petitioner in the peculiar circumstances of the case, particularly where the matter involves enforcement of accrued service rights and the controversy primarily pertains to admitted facts. Likewise, the plea regarding non-joinder of parties is also misconceived because grant of proforma / notional promotion to the petitioner after retirement

would not prejudice or adversely affect the seniority or service rights of serving officers.

15. It is also noteworthy that the petitioner had already been working against the post of Master (BPS-18) on personal grade basis for almost twelve years prior to retirement. His service record has not been shown to be adverse in any manner. Denial of consideration merely because the Selection Board meeting was delayed for reasons beyond his control would amount to penalizing the petitioner for administrative inaction of the department. The constitutional jurisdiction of this Court is always available where an employee, through no fault of his own, is deprived of lawful consideration and consequential service benefits due to arbitrary or delayed administrative action. The superior Courts have consistently held that executive authorities entrusted with statutory obligations must act fairly, reasonably and within time, failing which constitutional relief may validly be granted.

16. Consequently, the instant writ petition is allowed. The answer to the above proposition, is clearly in the negative. The competent authority/respondents are directed to consider and grant the petitioner proforma/notional promotion to the post of Master (BPS-18), strictly in accordance with law and in the light of the observations made hereinabove, with all consequential pensionary and monetary benefits admissible under the rules. The competent authority shall issue the requisite notification/order within a period of one month from the date of receipt of copy of this judgment and shall submit compliance report before the Deputy Registrar (Judicial) of this Court.

Announced.
19.05.2026.
(Shahid Ali *JSS*)

SENIOR PUISNE
JUDGE


JUDGE

(D.B)
Honorable Mr. Justice Ijaz Anwar &
Honorable Mr. Justice Inam Ullah Khan